



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-17 | Cheyenne Terrace 2nd Filing – Zoning Map Amendment
Date: March 11, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 03/11/2024
- Public Services Committee 03/19/2024
- Second reading 03/25/2024
- Public Services Committee 04/02/2024
- Third and final reading 04/08/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their March 4, 2024 meeting and recommended the Governing Body approve this application by a 3 to 1 vote.

The Planning Commission Staff report is attached and has not been changed.

Related Items to be introduced on 03/25/2024:

- PUDC-24-7: Expedited Plat

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MR MEDIUM-DENSITY RESIDENTIAL TO NR-2 NEIGHBORHOOD RESIDENTIAL – MEDIUM DENSITY FOR LAND LOCATED SOUTH OF WEST 5TH STREET BETWEEN PATTON AVENUE AND SNYDER AVENUE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on March 4, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 2 through 76, Block 1, Cheyenne Terrace, 2nd Filing, Cheyenne, Wyoming, is hereby changed to NR-2 Neighborhood Residential – Medium Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

MARCH 4, 2024

STAFF REPORT

FILE: UDC-24-17: Cheyenne Terrace 2nd Filing – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 4.581 acres of land from MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density

LOCATION: South of W 5th St, between Patton Avenue and Snyder Avenue.

APPLICANT: AVI PC

AGENT: AVI PC

OWNER: Pinewood Village LLC

ZONING: MR Medium-density Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To allow for Cottage Lot Development

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 2 through 76, Block 1, Cheyenne Terrace 2nd, Filing to NR-2 Neighborhood Residential – Medium Density as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MR Medium-Density Residential to NR-2 Neighborhood Residential – Medium Density for roughly 4.581 acres of land. The land is currently vacant on the south side of the property and there is existing multifamily on the north side of the property. There is an associated plat with this zone change which would subdivide the south side of the property for Cottage Lot development. The plat application is PUDC-24-7. Specific Lot layout may change with review of the plat, but the substance of the request will stay the same.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	MR Medium-density Residential	Vacant / Multi-family
North	Urban Residential	MR	Multi-family
South	Urban Residential	MR	Multi-family
East	Urban Residential	MR	Residential
West	Urban Residential	MR	Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development.

The Future Land Use Designation for this property is Urban Residential and the surrounding area is Urban Residential. According to the comprehensive plan the optimal City zones for the subject property's future land use designation is any one of the residential zones, including NR-2.

Based on the policies and future land use map, NR-2 zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

All Surrounding properties are zoned MR. MR and NR-2 zones are medium-density residential zones. The difference is that NR-2 zoning anticipates alley-loaded development, allows smaller lots, and has a higher design standard. NR-2 zoning is compatible with surrounding zoning.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The MR, as put forward in the UDC, is intended for larger-block, front-loaded, suburban style development patterns (like Saddle Ridge or The Pointe). NR-2 zoning is intended for smaller-block, rear-loaded, compact development patterns (like what is found in the Avenues). The proposed development is for cottage lots built in a townhouse style which better fits in the NR-2 zone.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The zone change is occurring in a pre-existing neighborhood. No changes to the street network are proposed. There will be a private street that will connect Patton Avenue and Snyder Avenue.

Accesses will not be changed with the zone change.

Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The NR-2 zone is intended for a medium density and mix of dwelling types that promote a consistent neighborhood character, with a compact development pattern and highly connected

street network. The existing neighborhood meets these objectives. The proposed project is a cottage lot development which proposes a more compact type of development.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The NR-2 zone allows a variety of residential uses (as does the current MR zone). The applicant intends to build a cottage lot style development which is permitted in the NR-2 zone. Should this particular project not move forward with cottage lots, the NR-2 zoning provides other options for infill residential development.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Proposal meets comprehensive plan principles. The entire area should be this zone based on the physical form of the neighborhood

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the NR-2 zone at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The NR-2 zone is appropriate based on the future land use map, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

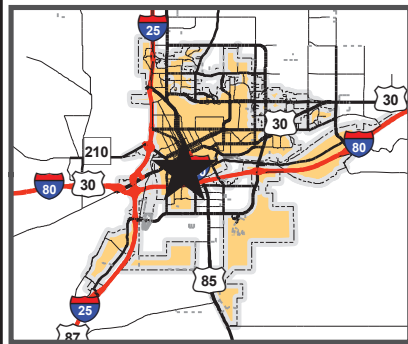
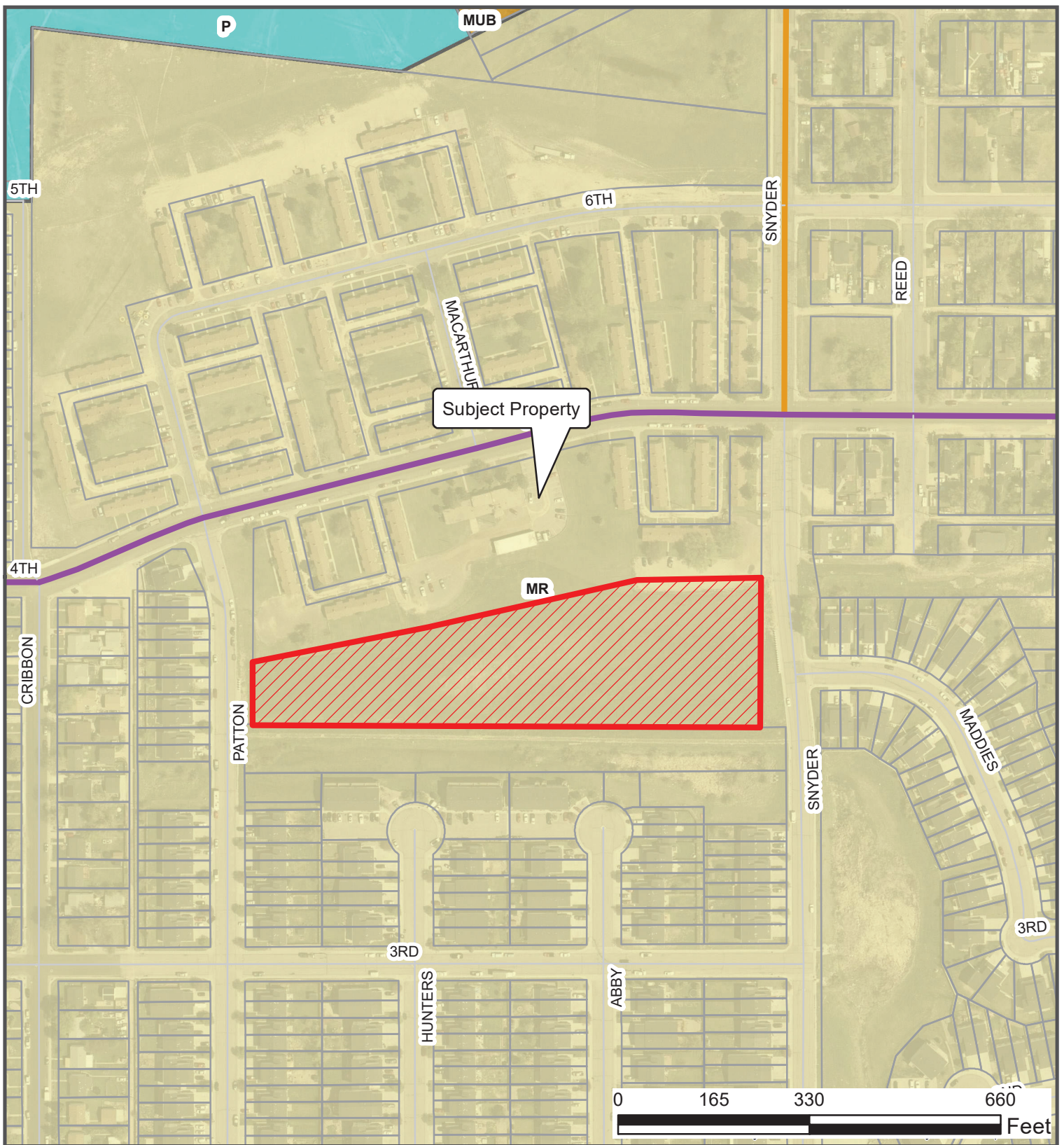
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MR to NR-2.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map
5. Differences in uses per zone

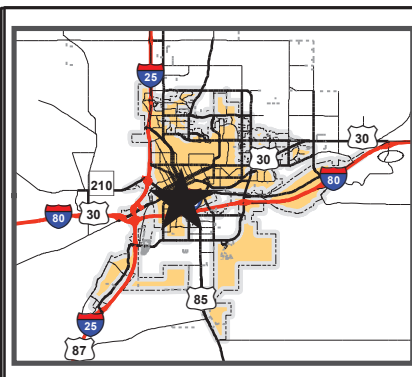
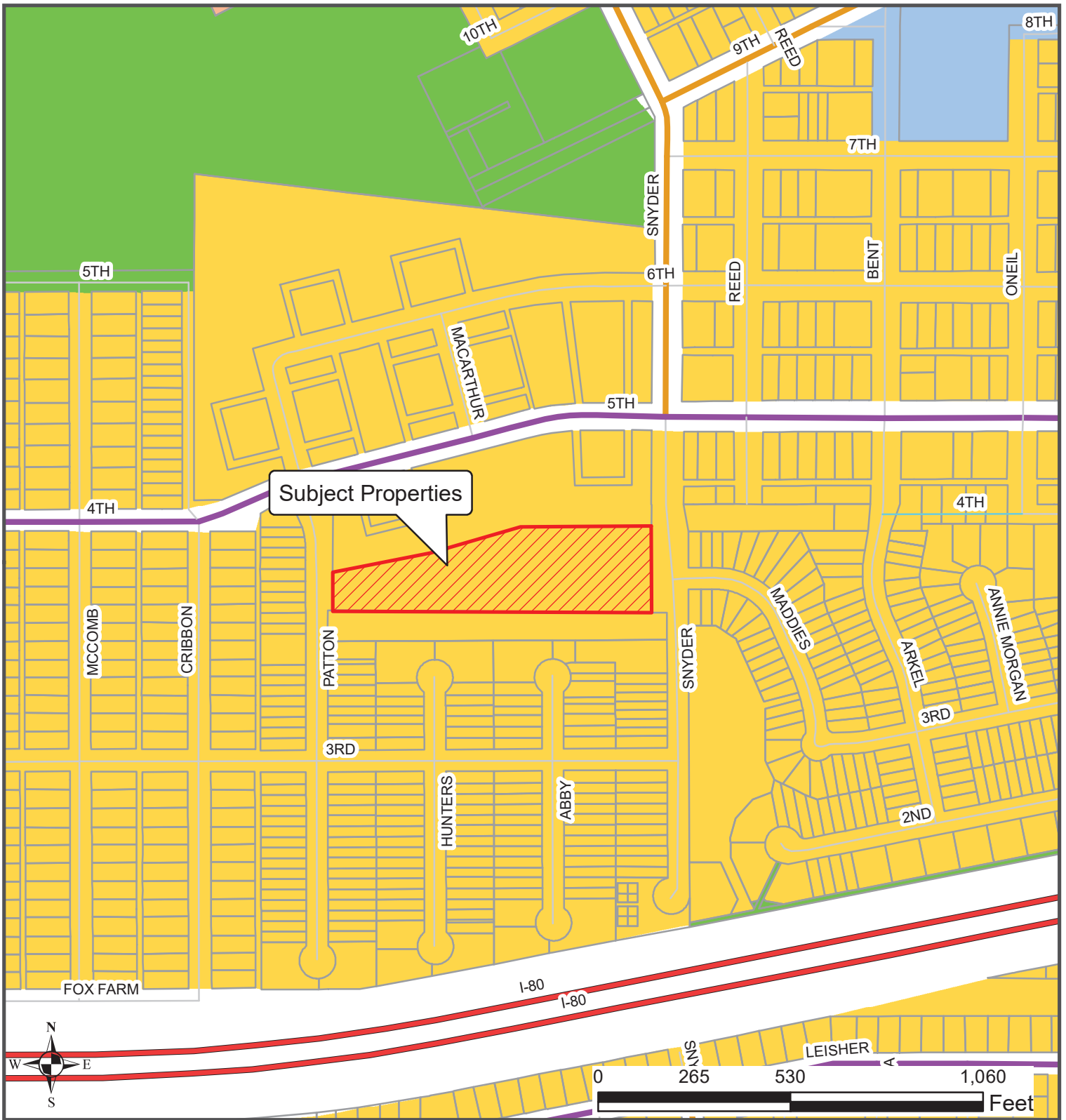


Attachment 1: Zoning Map PUDC-24-17

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-17

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

2/26/2024

PUDC-24-17

Zoning Map Amendment

Status: Active

Submitted On: 1/25/2024

Primary Location

0

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Owner**Applicant**

AVI PC

307-637-6017

avi@avipc.com

 1103 Old Town Lane #101
Cheyenne, WY 82009

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* ?

CHEYENNE TERRACE 2ND FILING

Proposed Zoning* ?NR-2 Neighborhood Residential –
Medium Density

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



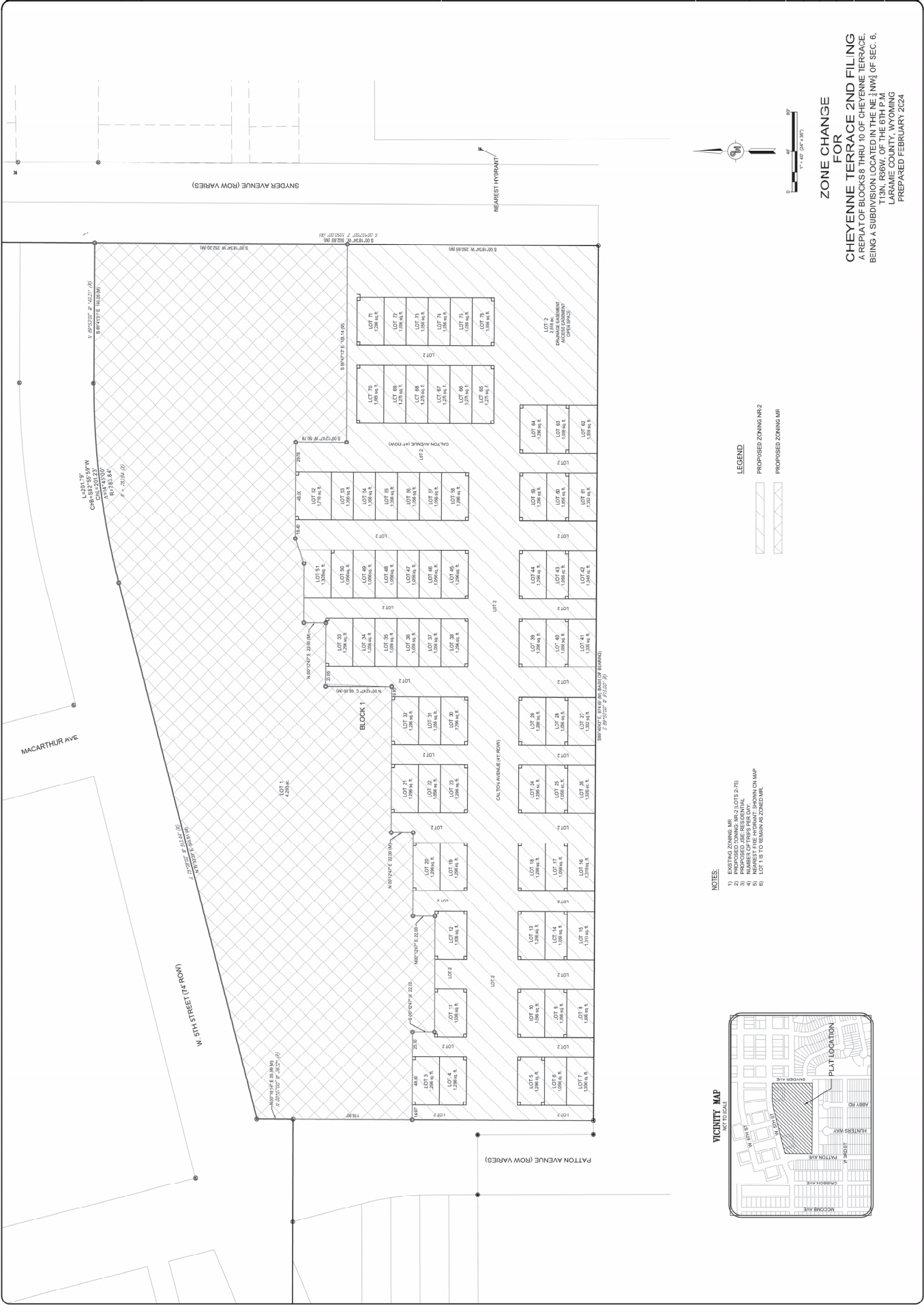
Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

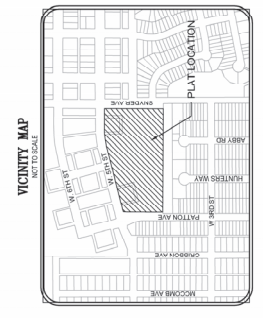


Christopher Thomas Annala

Jan 24, 2024



- NOTES:
- 1) EXISTING ZONING MAP, LOT 18 TO REMAIN AS ZONED MAP.
 - 2) PROPOSED ZONING MAP, LOT 18 TO REMAIN AS ZONED MAP.
 - 3) PROPOSED ZONING MAP, LOT 18 TO REMAIN AS ZONED MAP.
 - 4) PROPOSED ZONING MAP, LOT 18 TO REMAIN AS ZONED MAP.
 - 5) PROPOSED ZONING MAP, LOT 18 TO REMAIN AS ZONED MAP.
 - 6) LOT 18 TO REMAIN AS ZONED MAP.



LEGEND

EXISTING ZONING MAP

PROPOSED ZONING MAP

PROPOSED ZONING MAP

City MR - MEDIUM DENSITY RESIDENTIAL
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling ("Duplex")
Attached Dwelling ("Townhouse")
Child Care, In Home - Minor
Home occupations
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Child Care, In Home - Major
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Cottage Lots
Group Housing
Dormitories
Multi-dwelling Building ("Apartment")
Live/Work
Manufactured housing parks
Neighborhood Assembly (<350 maximum occupancy)
Primary and secondary schools
Community Athletic Field
Assisted Living / Nursing Home
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility
Lodging, Bed and Breakfast
Mini Storage
Office – Limited (<3,500)

City NR-2 - NEIGHBORHOOD RESIDENTIAL - MEDIUM
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling ("Duplex")
Attached Dwelling ("Townhouse")
Cottage Lots
Multi-dwelling Building ("Apartment")
Child Care, In Home - Minor
Home occupations
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Neighborhood Assembly (<350 maximum occupancy)
Child Care, In Home - Major
Lodging, Bed and Breakfast
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Live/Work
Primary and secondary schools
Community Athletic Field
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility
Office – Limited (<3,500)